

**SYNTHETIC COURT DOCUMENT — FICTIONAL CASE — NOT AN
ACTUAL FILING**

UNITED STATES DISTRICT COURT FOR THE WESTERN DISTRICT OF VIRGINIA

Civil Action No. SYN-WDVA-25-CV-0733

Deposition of Officer Priya Vega

Taken September 24, 2025; designated with Ellison's December 12, 2025 opposition.

Q. State your position and involvement in the February 3 welfare call.

A. I am a patrol officer with the Alder Creek Police Department. I was the assisting officer on the welfare call concerning Mara Ellison at Larkspur Court Apartments. Officer Nolan Rusk arrived first. I arrived shortly after he made contact and remained through handcuffing and the initial medical response.

Q. What information did dispatch provide?

A. The dispatch described a medication or mental-health crisis and requested a welfare check. It said there was no reported weapon. I did not receive information that Ellison had committed a crime, threatened someone, or attempted to flee. Welfare calls can change as officers gather facts, but the dispatched information did not announce an immediate violent threat.

Q. What is the purpose of your testimony?

A. I can describe my position, what I perceived, what my camera recorded, and departmental steps after the contact. I cannot reliably describe a hand movement that neither my eyes nor the video captured. My testimony should not be read to adopt either party's reconstruction of the obstructed interval.

Vega deposition — arrival and initial scene

Q. When did you arrive, and what did you observe first?

A. I entered the Building C breezeway while Rusk was speaking with Ellison. She was seated when the contact began, and I saw no object in her hands. She appeared distressed and was responding in short statements. I heard Rusk ask her to stand and speak with the officers. I moved toward an angle near the stairs so I would not crowd the narrow passage.

Q. Was Ellison under arrest for a crime at that point?

A. Not to my understanding. The objective was to secure the scene and determine whether medical assistance was needed. I had no probable-cause information about a criminal offense. That did not mean officers could never restrain her; it describes the purpose and information I possessed at the beginning.

Q. Did you see conduct presenting an immediate danger before Rusk touched Ellison?

A. I did not see a weapon, strike, rush, or attempt to run before the wrist contact. She was agitated and did not promptly follow every direction. Distress and noncompliance may affect an officer's planning, but I did not personally observe an immediate physical attack during that initial period. I did not hear Rusk announce that he saw a weapon.

Vega deposition — wrist restraint and changing positions

Q. When did you understand that a seizure began?

A. At approximately 19:53:02, Rusk grasped and restrained Ellison's wrist while directing her to stand. She was no longer free to end the encounter. I moved closer because physical contact had begun and the space was constrained by the wall and railing.

Q. How did Ellison react?

A. I saw her upper body turn and her arm pull relative to Rusk's grasp. I cannot tell from that brief view whether the motion was an attempt to escape control, a reaction to pain, or both. I did not see a completed punch before my line of sight became crowded. Rusk describes a forearm strike; Ellison denies striking him.

Q. Did you see her reach toward the duty belt?

A. I did not obtain a reliable view of her hands during the pivotal seconds. Rusk later said one hand moved toward his belt. Ellison said her hands remained away from it. My position and the people between me and the contact prevent me from confirming either description. I would not use the fact that I moved in to assist as proof that I saw a belt reach. Officers often assist when a physical encounter becomes unstable even without seeing its precise cause.

Vega deposition — the obstructed interval

Q. Describe the camera views from 19:53:08 through 19:53:22.

A. Rusk's camera is substantially obstructed by clothing, bodies, and rapid close movement. My camera is offset, but the railing, Rusk's body, and Ellison's position prevent a dependable view of the hands. Portions show posture and location; they do not reveal each alleged contact.

Q. What can be heard?

A. The recordings include Rusk saying “stop pulling,” Ellison saying “you're hurting me,” other commands, a cry, and movement noise. The sound confirms that commands and distress occurred. It does not let me identify, from audio alone, a forearm strike or a hand approaching equipment.

Q. Did you write that the video “shows active aggression”?

A. No. My supplemental report says the video records a close struggle but does not resolve the parties' competing accounts of the hidden hand movements. An earlier incident-summary checkbox used the general label “resistance.” That label covered pulling and failure to present an arm; it was not a frame-by-frame finding that Ellison struck or grabbed. I distinguish those acts because their danger and significance may differ. I did not perform automated image enhancement, pose estimation, or any other machine inference to fill the obstructed interval.

Vega deposition — conducted-energy weapon cycle

Q. What did you perceive about Rusk's use of the conducted-energy weapon?

A. I heard the device and Ellison's cry while Rusk was forcing her toward the breezeway floor. The download later recorded one five-second drive-stun cycle beginning around 19:53:16 and ending around 19:53:21. No probes were fired. When the view cleared at approximately 19:53:22, the cycle had ended and officers were moving to secure her arms.

Q. Did you order the use?

A. No. Rusk made the decision. I was reaching to assist with control. I did not give a warning about a weapon, and I did not see a weapon after the contact. I cannot testify that he lacked a perception unavailable to me, but I also cannot corroborate the alleged belt reach from my view.

Q. What happened next?

A. We handcuffed Ellison by approximately 19:53:37, checked fit, and requested medical assessment. Once her arms were secured, no additional conducted-energy cycle or strike was used. She remained upset and repeatedly denied striking or reaching for equipment. Rusk stated that she had twisted, hit his forearm, and moved toward his belt. I documented the existence of both statements rather than resolving them in my narrative.

Vega deposition — threat assessment and welfare purpose

Q. How did the original purpose of the call affect your approach?

A. A welfare call involving a person in distress called for time, space, communication, and medical resources when safety allowed. Dispatch had reported no weapon and no threat. The narrow breezeway presented positioning concerns, but it did not itself establish that Ellison posed an immediate danger. I initially chose an offset position and a quieter tone for those reasons.

Q. Does noncompliance always mean an immediate safety threat?

A. No. A person may decline instructions, pull an arm, freeze, or react unpredictably without necessarily attempting to harm an officer. Officers still may need control, but force choices depend on what the resistance is, what danger it creates, and how circumstances change. Those are fact-specific judgments.

Q. What facts would matter to the danger assessment here?

A. Whether Ellison struck Rusk, deliberately reached for the duty belt, or instead only recoiled and pulled from a painful grasp would matter. So would whether her hands were visible, whether an officer reasonably perceived access to equipment, the absence of a reported weapon, the welfare rather than criminal purpose, and the available time for communication. I can identify those considerations without pretending that my obstructed view establishes the disputed ones.

Vega deposition — reports and force review

Q. What did you record in your incident report?

A. I recorded that Rusk contacted Ellison on a welfare call, took wrist control, and used one drive-stun cycle during the effort to place her on the floor. I wrote that I could not see the hands clearly during the closest movement. I described Ellison pulling and not presenting an arm for cuffs. I attributed the claimed forearm strike and belt reach to Rusk rather than stating that I observed them.

Q. Did Lieutenant Marcus Hale ask you to change that attribution?

A. No. Hale asked whether my camera offered a second view and whether I had heard a threat. I answered that the second view did not reliably display the hands and that I heard no verbal threat. The force-review materials preserved my answer. The review did not improve or reconstruct the missing image.

Q. Were the recordings preserved?

A. Yes. Sergeant Lila Grant exported the recordings and associated metadata under department procedure. I reviewed the exported copies and recognized them as the same encounter. I rely on the custodian and technical witness for hash verification and clock analysis. My testimony authenticates what I personally recognize but does not establish every technical property of the files.

Vega deposition — medical observations and statements

Q. What injuries did you observe before transport?

A. I saw redness or abrasion at one wrist and two small marks consistent with where drive-stun contacts had occurred. Ellison complained of shoulder pain. I did not observe a fracture, and I deferred to Paramedic Mateo Cole and Alder Creek Regional Medical Center for diagnosis.

Q. Did Rusk report an injury from the alleged forearm strike?

A. He said his forearm had been contacted and felt sore. I did not see a cut or swelling, and he did not request transport. The absence of visible injury does not independently establish whether contact occurred. It is one observation among the competing evidence.

Q. Did Ellison become violent during medical assessment?

A. Not in my presence. She cried, questioned why force had been used, and sometimes spoke over instructions, but she did not strike Cole or attempt to take equipment. After cuffs were adjusted and the scene calmed, she cooperated with the medical examination. I mention that later conduct as an observation, not as proof of how she moved during the earlier obstructed seconds. Conduct before or after an event can provide context but cannot replace direct evidence of the disputed moment.

Vega deposition — departmental training and limited opinions

Q. What were you trained about conducted-energy weapons in drive-stun mode?

A. Training described drive stun as a pain-compliance use that ordinarily does not create the neuromuscular incapacitation associated with separated probes. Officers were instructed to tie each use to an articulable objective, reassess as conditions changed, account for medical or mental-health information, and avoid treating a generic label like resistance as the entire analysis.

Q. Are you offering an expert opinion that Rusk violated policy or law?

A. No. I am a fact witness describing the training I received and the encounter I perceived. The parties retained experts to address practices, video interpretation limits, and the legal briefing addresses qualified immunity. Department policy and constitutional reasonableness are not necessarily identical.

Q. What is the most important limit on your testimony?

A. I cannot say that I saw Ellison strike Rusk or reach for his belt, and I cannot say that the recordings disprove those acts. I can say that the crucial view is obstructed, the dispatched call reported no weapon, Ellison was distressed, a wrist restraint preceded the close movement, and one drive-stun cycle occurred. Any account that converts my uncertainty into affirmative support for one side exceeds what I observed.

Vega deposition — transcript review and final clarification

Q. Have you reviewed this designation for accuracy?

A. Yes. It accurately states my arrival, the information provided by dispatch, the limits of my view, the timing shown by the recordings, my role in handcuffing and medical response, and the distinction between Rusk's account and my personal observation.

Q. Do you correct any prior wording?

A. In an initial shorthand entry I wrote “suspect resisted and CEW deployed.” “Subject” would have better reflected a welfare encounter before any criminal allegation, and “resisted” should not be read as a finding of striking or grabbing. My detailed narrative identified pulling and failure to present an arm, while attributing the alleged strike and belt reach to Rusk. I make that clarification without withdrawing what I actually saw.

Q. Can this deposition decide summary judgment?

A. That is for the court. I understand evidence must be viewed under Rule 56 and that factual disputes may prevent a court from deciding what happened. If a legal qualified-immunity question is considered on assumed facts, those assumed facts should not be confused with a final finding about the encounter. My testimony supplies evidence within my knowledge; it does not authorize an appellate court to choose which account the jury should believe.